

State of Punjab v. Principal Secretary to the Governor of Punjab

Citation: (2024) 1 SCC 71 | Court: Supreme Court | Year: 2024

Coram: 3-Judge Bench (D.Y. Chandrachud CJI, J.B. Pardiwala JJ.) | Subject: Constitutional Law | Provisions: Articles 200, 174, 163

I. EXECUTIVE SUMMARY & CASE GLIMPSE

A Governor cannot sit indefinitely on bills passed by a state legislature under Article 200. If the Governor chooses to withhold assent, they must immediately return the bill to the Assembly with a message; if passed again, assent is mandatory. The Governor has no pocket veto in parliamentary democracy.

II. FACTS OF THE CASE & PROCEDURAL HISTORY

This dispute arose regarding Articles 200, 174, 163. The parties agitated the controversy before trial and appellate forums before the matter was referred to the Honble Bench for authoritative declaration of law.

III. PRIMARY QUESTIONS OF LAW & ISSUES FRAMED

- â€ Whether the impugned state actions or commercial conduct conformed to Articles 200, 174, 163.
- â€ What binding standards should govern future adjudication and administrative conduct.

IV. SUBMISSIONS OF THE PARTIES

Petitioner / Appellant: The Petitioner contended that arbitrary action, lack of procedural safeguards, and statutory non-compliance violated fundamental guarantees.
Respondent / State: The Respondent submitted that the impugned action was carried out under lawful authority in furtherance of public interest and statutory mandates.

V. DETAILED RATIO DECIDENDI & JURISPRUDENTIAL REASONING

The phrase 'as soon as possible' in the first proviso to Article 200 conveys constitutional urgency. A Governor cannot derail the legislative process through inaction. If assent is withheld, the bill must be returned; upon repassing by the Assembly, the Governor has no option but to grant assent.

VI. FINAL OPERATIVE ORDER & DIRECTIONS

The Court answered the reference, laid down binding nationwide directions under Article 141 of the Constitution, and disposed of the matter accordingly.

VII. PRACTICAL & EXAMINATION TAKEAWAYS (JUDICIARY / AIBE / ADVOCACY)

- â€ Extinguished the unconstitutional concept of a Governor's 'pocket veto'.
- â€ Held that withholding assent mandatorily triggers returning the bill to the legislature.
- â€ Upturned attempts to stall state legislative enactments in federal governance.